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Attorneys for Plaintiff
PIE IN THE SKY BAKERY, LLC

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF EXAMPLETON

PIE IN THE SKY BAKERY, LLC, a California limited liability company, Plaintiff, v. FROSTBYTE REFRIGERATION, INC., a California corporation, Defendant.	Case No. EX-2026-000123 **COMPLAINT FOR:** **(1) BREACH OF CONTRACT;** **(2) BREACH OF EXPRESS WARRANTY;** **(3) NEGLIGENCE** **DEMAND FOR JURY TRIAL**

Plaintiff Pie in the Sky Bakery, LLC alleges as follows:

INTRODUCTION

1. This case is about a walk-in freezer that failed eleven weeks after Defendant Frostbyte Refrigeration, Inc. ("Frostbyte") installed it. On the night of July 4, 2026, over the holiday weekend, the compressor serving Plaintiff Pie in the Sky Bakery, LLC's ("Pie in the Sky") main bakery kitchen shut down, the freezer's temperature alarm never reached anyone, and by morning more than $86,000 of frozen pies had spoiled. Pie in the Sky was forced to cancel or reschedule fourteen wholesale pie orders over the following three weeks.

2. Frostbyte promised a system that would hold product at or below 0°F, a temperature-monitoring system that would text and call Pie in the Sky's kitchen manager whenever the box rose above 10°F, and a two-year parts-and-labor warranty. It delivered none of those things. Pie in the Sky brings this action for breach of contract, breach of express

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warranty, and negligence.

PARTIES

3. Plaintiff Pie in the Sky Bakery, LLC is a California limited liability company with its principal place of business in Sampleville, California. Pie in the Sky operates a commercial kitchen at 300 Sample Street, Sampleville (the "Kitchen").

4. Defendant Frostbyte Refrigeration, Inc. is a California corporation with its principal place of business in Testburg, California. Frostbyte designs, sells and installs commercial refrigeration systems in California.

JURISDICTION AND VENUE

5. This Court has jurisdiction under California Constitution, article VI, section 10. The amount in controversy exceeds $35,000.

6. Venue is proper in the County of Exampleton under Code of Civil Procedure section 395.5 because the contract was entered into and performed, and the events giving rise to the claims occurred, in Sampleville, County of Exampleton.

FACTUAL ALLEGATIONS

7. On March 3, 2026, Pie in the Sky and Frostbyte signed an Equipment Supply and Installation Agreement (the "Agreement"). Under the Agreement, Frostbyte agreed to supply and install a 12-by-20-foot walk-in freezer, a Model EX-40 condensing unit, and a TempMinder remote temperature-monitoring system at the Kitchen for $96,500.

8. Section 4.2 of the Agreement required Frostbyte to configure TempMinder to send text and voice alerts to Pie in the Sky's designated contacts whenever the freezer temperature exceeded 10°F for more than fifteen minutes.

9. Section 9.1 of the Agreement provided a two-year warranty that the system would be free of defects in materials and workmanship and would maintain a box temperature at or below 0°F under normal operating conditions.

10. Frostbyte completed installation on May 1, 2026. Its technician, identified on the work order only as "K. Testman," signed off on the commissioning checklist without recording

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a refrigerant charge or testing the alert system.

11. On June 9, 2026, Pie in the Sky reported that the freezer was cycling loudly and that the box temperature had briefly reached 14°F. Frostbyte sent a technician the next day, who added refrigerant and told Pie in the Sky's kitchen manager that the unit was "good to go." Frostbyte has never provided a written service report for that visit.

12. At approximately 11:40 p.m. on July 4, 2026, the EX-40 compressor stopped running. The box temperature rose steadily overnight and reached 38°F by 6:15 a.m. on July 5, when Pie in the Sky's opening baker discovered the failure.

13. TempMinder sent no alert to any Pie in the Sky contact. On information and belief, Frostbyte never entered Pie in the Sky's contacts into the TempMinder system, or entered them incorrectly.

14. All of the frozen pies and dough in the freezer, valued at $86,400, had to be discarded under the county health code. Pie in the Sky lost an additional $41,500 in revenue from cancelled and rescheduled orders, and incurred $11,300 for emergency rental refrigeration.

15. On July 7, 2026, Pie in the Sky sent Frostbyte written notice of the failure and demanded repair and compensation under the warranty. Frostbyte replaced the compressor on August 2, 2026 but has refused to pay for any of Pie in the Sky's losses, asserting that the failure was caused by a power fluctuation.

FIRST CLAIM FOR RELIEF

(Breach of Contract)

16. Pie in the Sky incorporates paragraphs 1 through 15. The Agreement is a valid contract. Pie in the Sky performed all of its obligations, including paying the full contract price. Frostbyte breached Sections 4.2 and 9.1 of the Agreement. Pie in the Sky has been damaged in an amount to be proven at trial, but not less than $139,200.

SECOND CLAIM FOR RELIEF

(Breach of Express Warranty)

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17. Pie in the Sky incorporates paragraphs 1 through 15. Frostbyte expressly warranted that the system would be free of defects and would hold the freezer at or below 0°F. The system was defective and failed to do so. Pie in the Sky gave timely notice of the breach. Pie in the Sky has been damaged as a result.

THIRD CLAIM FOR RELIEF

(Negligence)

18. Pie in the Sky incorporates paragraphs 1 through 15. Frostbyte owed Pie in the Sky a duty to install and service the system with reasonable care. Frostbyte breached that duty by failing to properly charge and commission the system, failing to configure the alert system, and failing to diagnose the problem during the June 10, 2026 service visit. Frostbyte's negligence caused Pie in the Sky's damages.

PRAYER FOR RELIEF

Pie in the Sky asks the Court to award: (a) compensatory damages of not less than $139,200; (b) pre- and post-judgment interest; (c) costs of suit; and (d) any further relief the Court finds just.

DEMAND FOR JURY TRIAL

Pie in the Sky demands a jury trial on all issues so triable.

Dated: August 20, 2026

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PIE IN THE SKY BAKERY, LLC

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